

Amendment No. 2 to SB1138

Watson
Signature of Sponsor

AMEND Senate Bill No. 1138

House Bill No. 543*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 7, Chapter 35, Part 4, is amended by adding the following as a new section:

(a) A city or town that has operated a sewerage system outside of the corporate boundaries of the city or town for twenty-five (25) years or more shall not cease operating the sewerage system outside of its corporate boundaries so long as the sewerage system maintains sufficient capacity to continue to provide sewerage service outside of its corporate boundaries, as determined by a study, report, or other information and evidence presented to the Tennessee board of utility regulation in a hearing pursuant to § 7-82-702(b)(1)(E).

(b) This section does not affect, impact, or interfere with the rates in existing or future water or wastewater services contractual arrangements, or renewals or extensions of such existing or future agreements.

SECTION 2. Tennessee Code Annotated, Title 7, Chapter 82, Part 3, is amended by adding the following as a new section:

(a) A utility district that has operated a sewerage system in the unincorporated territory of a county for twenty-five (25) years or more shall not cease operating the sewerage system in the unincorporated territory so long as the sewerage system maintains sufficient capacity to continue to provide sewerage service in such unincorporated territory, as determined by a study, report, or other information and

evidence presented to the Tennessee board of utility regulation in a hearing pursuant to § 7-82-702(b)(1)(E).

(b) This section does not affect, impact, or interfere with the rates in existing or future water or wastewater services contractual arrangements, or renewals or extensions of such existing or future agreements.

SECTION 3. Tennessee Code Annotated, Title 7, Chapter 82, Part 7, is amended by adding the following as a new section:

(a) A utility system, as defined in § 7-82-701(b), that provides wastewater service shall provide a connection to the owner of real property for wastewater service when the utility system:

(1) Has an existing gravity sewer line located on the owner's property;

and

(2) The owner requests such connection and service.

(b) If the utility system refuses to provide wastewater service to the owner, the owner may submit a complaint to the Tennessee board of utility regulation for a review and hearing on the refusal to provide wastewater service in accordance with § 7-82-702(b)(1)(E); provided, the owner shall first appeal or make a complaint to the utility system's governing board on the utility's refusal to provide wastewater service.

(c) When the governing board of the wastewater utility system is the legislative body of the city, town, metropolitan government, or county providing wastewater service, the owner's appeal or complaint on the utility's refusal to provide wastewater service must be acted upon within sixty (60) days of the submission of the appeal or complaint by the owner. If the legislative body of the city, town, metropolitan government, or county providing wastewater service fails to act on the owner's appeal or complaint within sixty (60) days, the owner may proceed with the submission of its complaint to the Tennessee board of utility regulation, which shall conduct its review and hearing on the

refusal to provide wastewater service in accordance with § 7-82-702(b)(1)(E) without a decision from the utility's governing board on the owner's appeal or complaint.

(d) This section does not affect, impact, or interfere with the rates in existing or future water or wastewater services contractual arrangements, or renewals or extensions of such existing or future agreements.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.